

Cv-05 4166

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

VICTOR RAMIREZ and LORA RAMIREZ

FILED
IN CLERK'S OFFICE
U.S. DISTRICT COURT E.D.N.Y.

Plaintiffs, (S.I.)

COMPLAINT ★

AUG 31 2005 ★

-against-

LONG ISLAND OFFICE

CITY OF NEW YORK, NEW YORK CITY POLICE
OFFICER LIEUTENANT WELLBROCK, Individually
and as an officer attached to the New York City
Police Department, NEW YORK CITY POLICE
OFFICER ID NO. 930552, whose name currently unknown,
Individually and as a Police Officer attached to the
New York City Police Department, POLICE OFFICER
ID NO. 933374, whose name is currently unknown,
Individually and as an officer attached to the New
York City Police Department, and other Officer whose
names are currently unknown, Individually and as
Officers attached to the New York City Police
Department

ROSS, J.
MATSUMOTO, M.J.

Defendants.

Plaintiffs, VICTOR RAMIREZ and LORA RAMIREZ, as and for their Complaint, by
their attorneys, LAW OFFICES OF STEPHEN CIVARDI, ESQ., P.C. respectfully allege
as follows:

PARTIES, JURISDICTION AND VENUE

1. Plaintiffs, VICTOR RAMIREZ and LORA RAMIREZ are husband and wife
adult citizens who reside at 69-07 Juniper Blvd. South, Middle Village, New York 11379,
County of Queens, State of New York.
2. That at all times hereinafter mentioned, the defendant, CITY OF NEW

YORK, was and still is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.

3. This Court has jurisdiction of this action pursuant to 28 U.S.C. § 1331, 1332, 1343, and 42 U.S.C. § 1983.

4. Venue is properly laid, pursuant to 28 U.S.C. §1391, et seq. in the Eastern District of New York where all parties reside and in which the events and violations complained of occurred.

5. Plaintiffs demand trial by jury of all the issues in this action.

6. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, maintained, operated, managed, and controlled the New York City Police Department, which at all times relevant to this Complaint, employed the named defendants.

7. That defendants, CITY OF NEW YORK and individually named police officers were at all times relevant to this Complaint, duly appointed and acting as Police Officers of the Police Department of the City of New York, acting under the color of law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York and/or the City of New York, and are being sued herein in both their official capacities and individually,

8. That at all times relevant to this Complaint, defendants and other officers, whose names are currently unknown were assigned to the 104^h Precinct in Queens County, City of New York and the Emergency Services Unit.

9. That prior to the commencement of the instant action, plaintiffs, VICTOR RAMIREZ and LORA RAMIREZ, in accordance with the laws of the State of New York,

served a duly verified Notice of Claim and intention to sue thereon in writing upon the CITY OF NEW YORK on July 22, 2005, that said Notice of Claim was served within ninety (90) days of the respective occurrences herein.

10. That more than thirty (30) days have elapsed since the presentation of the said Notice of Claim and the claims remain unadjusted and that the defendants have fully refused, failed and neglected to make any adjustments for same.

11. That the statutory hearing of the plaintiffs required under the Municipal Law of the State of New York prior to the commencement of this suit was held on August 18, 2005 by the CITY OF NEW YORK.

12. That this action is being commenced within one (1) year and ninety (90) days of the date of the occurrence stated herein.

AS AND FOR A FIRST CAUSE OF ACTION PURSUANT TO 42 U.S.C. § 1983

13. Plaintiffs, VICTOR RAMIREZ and LORA RAMIREZ, repeat and reiterate each and every allegation contained in paragraphs numbered "1" through "12" as though more fully set forth herein.

14. That on or about July 3, 2005 at approximately 6:00 p.m. at 69-07 Juniper Blvd. South, Apartment #2, Middle Village, New York, Queens County, State of New York, plaintiffs as husband wife were present in their residence with their infant children.

15. The individual defendants herein were working as police officers in uniform and did proceed to the plaintiffs' residence and forcefully entered same by breaking down the door to their apartment without the permission of the plaintiffs.

16. That plaintiffs were falsely arrested, imprisoned, assaulted, separated from their children, denied prompt medical care, threatened with loss of their City jobs as New

York Transit Authority Department bus drivers, threatened that their children would be taken away from them, and suffered violations of their rights secured to him by the United States Constitution and the Amendments thereto and New York State Constitution and the Amendments thereto at the hands of the individual defendants as named herein.

17. That plaintiffs were initially arrested, handcuffed, thrown to the floor in the presence of their infant children and dragged down a staircase and out the front door of their residence and then thereafter detained in separate police cars for approximately one hour and forty five minutes before being released without being taken before a Judge or Magistrate.

18. That plaintiffs never touched, resisted or threatened defendants with any manner of physical force.

19. That the individual defendants named herein violently struck the plaintiffs on their head and body causing abrasions, trauma, shock and fright, loss of sensation of hands as a result of tightly applied handcuffed, and that plaintiff, LORA RAMIREZ suffered torn ligaments to her right wrist and aggravation of prior back injuries resulting from 1996 spinal surgery.

20. That at the aforementioned time and place and the originally named police officers without cause or provocation invaded, searched, damaged the premises of the plaintiffs and assaulted the plaintiffs while being malicious, reckless, careless and/or negligent.

21. At no time did the plaintiffs physically resist or assaulted defendants in anyway and that the force used against them was unnecessary, unreasonable and excessive.

22. At no time during the events described above were the plaintiffs intoxicated, a threat to the safety of themselves or others, disorderly or committed any criminal offense.

23. At all times hereinafter alleged and during the events described herein, the defendant officers were engaged in the joint venture, assisted each other in performing the various actions described, lent their physical presence in support and authority to their office to each other during the said events and were assisted by other officers, whose names are currently unknown, and who failed to prevent or report the conduct of the individual named defendants.

24. That the acts of the defendant police officers and other unknown officers were under the color of State Law as described herein, constituting the unlawful arrest and Imprisonment of the plaintiffs; the assault and excessive force against the plaintiff; are all in violation of plaintiff's Civil Rights under the First, Fourth, Eighth and Fourteenth Amendments of the Constitution of the United States and under 42 U.S.C. § 1983.

25. As a result of the foregoing, plaintiffs, VICTOR RAMIREZ and LORA RAMIREZ have suffered serious physical injuries; deprivation of their liberty without probable cause; denial of due process and equal protection of the laws; cruel and unusual punishments; invasion of their privacy; mental distress; pain and suffering; loss of earnings; and damage to their character and reputation.

26. That as a direct and proximate result of the acts of the defendant officers, the plaintiffs, VICTOR RAMIREZ and LORA RAMIREZ, suffered the following injuries and damages:

- a) Violation of their Constitutional Rights under the Fourth and

Fourteenth Amendments to the United States Constitution and be free from unreasonable search and seizure of his person;

- b) Loss of their physical liberty;
- c) Serious and severe pain and suffering and personal injuries, including but not limited to multiple cuts, contusions and abrasions, and fracture of the right elbow;
- d) Has been rendered sick, sore, lame, and disabled;
- e) Sustained a loss of enjoyment of life;
- f) Have sustained lost income and future earning capacity;
- g) Have sustained injuries of a permanent and lasting nature;
- h) Were compelled to undergo additional medical treatment, and may require future medical surgeries;
- i) Suffered pain and discomfort;
- j) Suffer, still suffer, and will continue to suffer severe distress of body and mind;
- k) They been compelled to and has necessarily expended sums of monies and incurred expenses, in the future, will be necessary to pay for medical care and attention, medicine and other expenses as a result of the foregoing;

27. The action of the defendant officers violated the following clearly established and well settled Federal Constitutional Rights of the plaintiffs, VICTOR RAMIREZ and LORA RAMIREZ:

- a) Freedom from unreasonable seizure of their person;
- b) Freedom from the use of excessive, unreasonable and unjustified

force against this person.

28. By reason of the foregoing plaintiffs, VICTOR RAMIREZ and LORA RAMIREZ have been damaged in the sum of FIVE MILLION and 00/100 (\$5,000,000.00) DOLLARS plus attorney's fees authorized pursuant to Federal statute.

**AS AND FOR A SECOND CAUSE OF ACTION FOR A VIOLATION OF
CONSTITUTIONAL RIGHTS AGAINST THE CITY OF NEW YORK**

29. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs "1" through "28" inclusive, with the same force and effect as herein set forth at length.

30. That prior to July 3, 2005, the CITY OF NEW YORK, developed and maintained policies and customs exhibiting deliberate indifference to the Constitutional Rights of the citizens of the State and City of New York which precipitated the violations of Victor and Lora Ramirez's Constitutional Rights.

31. That it was the policy and/or custom of the City of New York to inadequately and improperly investigate complaints of abuse, intimidation and unreasonable force by police officers and acts of misconduct were instead tolerated by the CITY OF NEW YORK, including but not limited to the prior matters:

- a. Assault of Abner Louima;
- b. Assault of Anthony Biaz;
- c. Multitude of complaints against officers of the 104th Precinct; and
- d. Savage beatings of other presently unnamed victims of abuse.

32. It was the policy and/or custom of the CITY OF NEW YORK to indemnify and defend its officers, including indemnification for awards for punitive damages, without

discipline all of which establish the policy and custom of approving such conduct by giving the officers the unmistakable belief that such conduct was tolerated, approved, and accepted.

33. It was the policy and/or custom of the CITY OF NEW YORK to inadequately supervise, discipline and train its officers, including the defendant officers, thereby failing to adequately discourage further Constitutional violations on the part of its police officers.

34. That the action of the defendant police officers and other unknown police officers resulted from and were taken pursuant to a defacto policy of the defendant, CITY OF NEW YORK to protect acts of misconduct on the part of its police officers, to wit, unlawful arrest and detention; excessive use of force; failing to provide prompt medical attention; abuse of process, harassment and intimidation.

35. Despite the knowledge of illegal, unconstitutional policies and practices, the supervisor and policy making employees of the CITY OF NEW YORK have not as a matter of policy taken steps to terminate said practices, have not disciplined or otherwise properly supervised the individual officers who engaged in said practices, have not effectively trained police officers with regard to proper constitutional statutory limits on the exercise of their authority and have instead sanctioned the policies and practices described previously through their deliberate indifference to the effect of such policy and practices upon the Constitutional Rights of the plaintiff herein, the residents and visitors to the CITY OF NEW YORK, thereby authorizing and sanctioning such policies and practices.

36. The defendant, CITY OF NEW YORK, having sanctioned the causes of the violation of plaintiff's rights is liable to the plaintiff for his injuries pursuant to 42 U.S.C. §

1983 and the First, Fourth, Eighth and Fourteenth Amendments to the United States Constitution.

37. As a result of the acts stated above, plaintiffs, VICTOR RAMIREZ and LORA RAMIREZ, have been rendered sick, sore, lame, disfigured and disabled; have sustained a loss of enjoyment of life; have sustained injuries of a permanent nature; have been compelled to undergo additional medical treatment; have been compelled in the past and will be compelled in the future to expend money in an endeavor to alleviate the pain, suffering and disabilities and deformities; have been deprived of their liberty without probable cause; have been denied due process in the protection of laws; have been subject to cruel and unusual punishment; have had their privacy rights invaded; have been caused mental distress and/or damage to their character and reputation and have suffered in the past and will suffer in the future economic loss as a result of the acts alleged herein and makes claims for attorney's fees pursuant to 42 U.S.C. § 1988.

38. By reason of the foregoing plaintiffs, VICTOR RAMIREZ and LORA RAMIREZ have been damaged in a sum not to exceed FIVE MILLION and 00/100 (\$5,000,000.00) DOLLARS plus attorney's fees authorized pursuant to Federal statute.

AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE ARREST AND ILLEGAL IMPRISONMENT

39. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs "1" through "38" inclusive, with the same force and effect as herein set forth at length.

40. That the named individual defendants and other unknown police officers on or about July 3, 2005 were acting in the course of their employment as duly appointed

police officers employed by the defendant, CITY OF NEW YORK, when they maliciously and intentionally caused the plaintiffs, VICTOR RAMIREZ and LORA RAMIREZ to be arrested, imprisoned, illegally searched and damaged their residence by turning over furniture, pulling furniture from the walls, throwing frozen food from their freezer on the floor, overturning their childrens' beds, and ripping down fixtures and shower curtains in their bathroom, even though no warrant existed for such an arrest or entry, and no probable cause existed for the initial arrest of the plaintiffs.

41. As a result of said false arrest, plaintiffs, VICTOR RAMIREZ and LORA RAMIREZ were imprisoned and held in the custody of the police, handcuffed in their apartment, handcuffed while dragged from their apartment and imprisoned in separate marked police cars outside of their residence for approximately one hour and forty five minutes while being denied prompt medical care and attention as requested by plaintiff, LORA RAMIREZ.

42. As a result of the false arrest and imprisonment which the plaintiffs suffered, plaintiffs' health has impaired, they suffered great mental distress and their reputation and character were injured.

43. That as a result of the false arrest and illegal imprisonment, plaintiffs, VICTOR RAMIREZ and LORA RAMIREZ, suffered damages as aforesaid.

44. That by reason of the foregoing, plaintiffs, VICTOR RAMIREZ and LORA RAMIREZ, have been damaged in a sum not to exceed FIVE MILLION and 00/100 (\$5,000,000.00) DOLLARS.

AS AND FOR A FOURTH CAUSE OF ACTION FOR NEGLIGENCE

45. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs "1" through "44" inclusive, with the same force and effect as herein set forth at length.

46. The defendant, CITY OF NEW YORK, was negligent, careless and/or reckless in failing to institute and/or file proper regulations and procedures to screen, hire, train, discipline and supervise the defendant police officers, and other unknown police officers in the discharge of their duties, including upon information and belief, the 104th Precinct, to which the defendants were assigned; the failing to implement proper procedures for the use of force; and failing to enforce the law with respect to the use of force; in failing to properly train and control the defendant police officers; in failing to properly authorize use of force, and in other ways being negligent, careless, and reckless in the circumstances.

47. As a result of said negligence, carelessness and/or recklessness, plaintiffs, VICTOR RAMIREZ and LORA RAMIREZ, suffered severe and serious physical injury with accompanying pain, suffering a mental distress, have been rendered sick, sore, lame, disfigured and disabled; have sustained a loss of enjoyment of life; have sustained injuries of a permanent and lasting nature; have been compelled to undergo additional medical treatment; have been compelled in the past and will be compelled in the future to expend money in an endeavor to alleviate pain, suffer disabilities and have suffered in the past and will suffer in the future economic loss as a result of the allegations herein.

48. That as a result of the negligence, carelessness and recklessness of the defendants, plaintiffs, VICTOR RAMIREZ and LORA RAMIREZ suffered damage to their

reputation and character.

49. That the said occurrence took place by reason of the carelessness and negligence of the defendants, their agents, servants and/or employees in the hiring and supervision of the defendant police officers involved in the acts herein above alleged and other police officers involved; in failing to properly screen, review, discipline and/or instruct said officers in the proper, constitutional use of force; in failing to properly control themselves; negligently, carelessly and recklessly striking and beating the plaintiff; in failing to teach and train the officers in the proper recognition of a diabetic condition; failing to render and/or provide prompt medical attention; keeping plaintiff from receiving prompt medical attention and in otherwise being reckless, careless and negligent under the circumstances.

50. That the aforementioned assault was caused solely by the negligent, careless and reckless acts and/or omissions of the defendants, their agents, servants and/or employees without instigation or provocation by the plaintiff.

51. That as a result of the negligence of the defendants, plaintiffs, VICTOR RAMIREZ and LORA RAMIREZ, suffered serious damages as aforesaid.

52. That as a result of the foregoing, plaintiffs, VICTOR RAMIREZ and LORA RAMIREZ have been damaged in a sum not to exceed FIVE MILLION and 00/100 (\$5,000,000.00) DOLLARS.

WHEREFORE, plaintiffs, VICTOR RAMIREZ and LORA RAMIREZ, demand judgment against the defendants as follows:

a) IN THE FIRST CAUSE OF ACTION PURSUANT TO 42 U.S.C.

§1983 IN A SUM NOT TO EXCEED FIVE MILLION and 00/100 DOLLARS
(\$5, 000,000.00);

b) IN THE SECOND CAUSE OF ACTION FOR A VIOLATION OF
CONSTITUTIONAL RIGHTS AGAINST THE CITY OF NEW YORK IN A SUM NOT TO
EXCEED FIVE MILLION and 00/100 DOLLARS (\$5,000,000.00);

c) IN THE THIRD CAUSE OF ACTION FOR FALSE ARREST AND
ILLEGAL IMPRISONMENT IN A SUM NOT TO EXCEED FIVE MILLION and 00/100
DOLLARS (\$5,000,000.00);

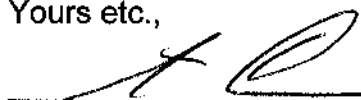
d) IN THE FOURTH CAUSE OF ACTION FOR NEGLIGENCE IN A
SUM NOT TO EXCEED FIVE MILLION and 00/100 DOLLARS (\$5,000,000.00);

e) Punitive damages against the individual defendants in the sum of
FIFTY THOUSAND and 00/100 DOLLARS (\$50,000.00) as to each individual defendant;

f) Costs, disbursements and attorneys fees pursuant to 42 U.S.C. §
1988.

Dated: Rockville Centre, New York
August 26, 2005

Yours etc.,



LAW OFFICES OF STEPHEN CIVARDI, P.C.
By: Stephen Civardi (8376)
Attorney for Plaintiffs
265 Sunrise Highway, Suite 30
Rockville Centre, New York 11570
(516) 678-9797

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

VICTOR RAMIREZ and LORA RAMIREZ

**DEMAND FOR JURY
TRIAL**

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
OFFICER LIEUTENANT WELLBROCK, Individually
and as an officer attached to the New York City
Police Department, NEW YORK CITY POLICE
OFFICER ID NO. 930552, whose name currently unknown,
Individually and as a Police Officer attached to the
New York City Police Department, POLICE OFFICER
ID NO. 933374, whose name is currently unknown,
Individually and as an officer attached to the New
York City Police Department, and other Officer whose
names are currently unknown, Individually and as
Officers attached to the New York City Police
Department.

Defendants.

S I R S:

Plaintiffs, by their attorneys, LAW OFFICES OF STEPHEN CIVARDI, P.C. hereby
demand a jury trial against the defendants.

Dated: Rockville Centre, New York
 August 22, 2005

Yours etc.,



LAW OFFICES OF STEPHEN CIVARDI
By: Stephen Civardi (8376)
Attorney for Plaintiffs
265 Sunrise Highway, Suite 30
Rockville Centre, New York 11570
(516) 678-9797

